

24STCV03763 24STCV03763

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-31

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C07%2F31%2F2026

Source SHA-256: 360df864478bad12de69398d55793d4215a351ecbd726ce7b1ecb7572249434c

Case Number: 24STCV03763 Hearing Date: July 31, 2026 Dept: 529

ELIZABETH ANN

BERSCHE v. SBE ENTERTAINMENT GROUP, et al.

plaintiff's motion for terminating
sanctions, or in the alternative, issue sanctions and request for monetary
sanctions against defendant sbe entertainment group, llc, et al.

Date of Hearing: July

31, 2026 Trial Date: October

26, 2026

Department: 529 Case No.: 24STCV03763

Moving Party: Plaintiff

Elizabeth Ann Bersche

Responding Party: No

opposition

BACKGROUND

On

February 14, 2024, Plaintiff Elizabeth Ann Bersche filed a complaint against
Defendants SBE Entertainment Group, LLC, Spoonful Management, LLC and San
Vicente Management, LLC for various violations of Government Code section 12940
and 12945.5 as well as Labor Code violations and wrongful termination.

[Tentative] Ruling

Plaintiff Elizabeth Ann Bersche's

Motion for Terminating Sanctions, or in the alternative, Issue Sanctions and Request for Monetary Sanctions against Defendant SBE Entertainment Group, LLC, et al. is GRANTED.

DISCUSSION

Plaintiff Elizabeth Ann Bersche moves

for terminating sanctions against Defendants SBE Entertainment Group, LLC, Spoonful Management, LLC and San Vicente Management, LLC, or in the alternative, issue sanctions together with monetary sanctions.

Where a party fails to obey

an order compelling answers to discovery, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction." (CCP §§ 2030.290(c), 2023.010(c); R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 495.) The Court may impose a terminating sanction against anyone engaging in conduct that is a misuse of the discovery process. (CCP§ 2023.030(d).) Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (CCP § 2023.010(d), (g).) A terminating sanction may be imposed by an order dismissing part or all of the action. (CCP § 2023.030(d)(3).)

Plaintiff argues Defendants have

engaged in a repeated pattern of discovery misuse, including disobeying multiple court orders, failing to appear for properly noticed depositions despite court orders compelling their attendance, and otherwise engaging in discovery misconduct warranting the imposition of terminating sanctions. In the alternative, Plaintiff requests issue sanctions, together with monetary sanctions. To date, Defendants have disobeyed two separate discovery orders and continued their noncompliance despite at least \$9,675.00 in discovery sanctions. Plaintiffs contend most recently, Defendants failed to produce two key witnesses for deposition even after the Court ordered their appearance and imposed monetary sanctions.

The court finds given Defendant's

apparent disinterest in defending this action, including responding to discovery and complying with court orders, terminating sanctions are warranted. As noted by Plaintiff, Defendant did not comply with the court's May 30, 2025 Minute Order, which included producing further responses along with monetary sanctions. (Buccat Decl. ¶9.) At a subsequent hearing on June 10, 2025, Defendants represented that they would provide code-compliant responses and requested additional time to comply. (Buccat Decl. ¶10.) The court ordered Defendants to provide the required responses within 30 days. (Buccat Decl. ¶10.) Defendants nevertheless failed to timely comply with the court's orders. (Buccat Decl. ¶10.) At the Discovery Status Conference, Plaintiff informed the court the responses were served untimely and remained incomplete and evasive. (Buccat Decl. ¶11.) The court lifted the stay on sanctions and ordered Defendant to pay \$2,975.00 in sanctions. (Buccat Decl. ¶11.) Defendant Spoonful did not provide supplemental document production until July 10, 2025, after the court-ordered deadline had passed. (Buccat Decl. ¶12.) Defendant Spoonful also untimely paid the Court-ordered sanctions on or about August 7, 2025. (Buccat Decl. ¶12.) Plaintiff noticed the depositions of two key defense witnesses, Sam Nazarian and Jay Patel. (Buccat Decl. ¶14.) Shortly before the depositions, Defendants served untimely objections and refused to provide alternative dates. (Buccat Decl. ¶20.) Neither witness sought a protective order nor obtained relief from the Court excusing their appearance. (Buccat Decl. ¶21.) As a result of Defendants' failures to appear, Plaintiff filed motions to compel the appearances of Mr. Nazarian and Mr. Patel and requests for monetary sanctions on April 13, 2026. (Buccat Decl. ¶22.) On May 13, 2026, Plaintiff's motions to compel the depositions of Mr. Nazarian and Mr. Patel were granted. (Buccat Decl. ¶24.) The court further awarded in monetary sanctions. (Buccat Decl. ¶24.) Despite the Court's order compelling their appearances and despite the imposition of monetary sanctions, neither Mr. Nazarian nor Mr. Patel appeared for deposition. (Buccat Decl. ¶26.) The court believes Defendant understood its obligations and willfully failed to comply. Given the near \$10,000.00 in monetary sanctions has not curbed Defendant's discovery misconduct, the court finds lesser sanctions will not curb the abuser. (See *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516; *Deyo v. Killbourne* (1978) 84 Cal.App.3d 771, 787.)

Based on the foregoing, the motion for terminating sanctions is GRANTED. As the court is granting terminating sanctions it declines to also impose monetary sanctions. The court strikes defendants answer and directs that default be entered against them.